

Washington State Probate Authority Resolution Guide (RCW Title 11)

Status: Approved

Category: Authority

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The single most critical factor in probate real estate acquisitions is **Authority Resolution**: determining whether the party executing the purchase contract has legal authority under Washington law to convey marketable title.

1. Nonintervention Powers (RCW 11.68.011) — The Gold Standard

Under RCW 11.68.011, if the decedent's will requests nonintervention powers or if the court finds the estate solvent, the Personal Representative (PR) is granted **Nonintervention Powers**.

- **Operational Implication:** The PR can sell, convey, mortgage, or lease real property **without court approval, notice, or an order confirming sale**. Closing can occur as rapidly as standard title review permits.
- **Required Documentation:** Certified copy of Letters Testamentary with clerk's raised seal + Order Admitting Will granting RCW 11.68 powers.

2. Full Court Intervention Sales (RCW 11.56)

When an estate does not have nonintervention powers, sale of real property is strictly regulated:

- PR must file a formal Petition for Order of Sale under RCW 11.56.030.
- Court requires notice to all interested parties and a formal hearing.
- After signing PSA, PR must file a Return of Sale; court must enter an **Order Confirming Sale** before deed delivery.

3. Off-Docket & Lack of Probate Affidavit (RCW 82.45.197)

When an owner passes away and no probate petition is opened, title can often be cleared via a recorded **Lack of Probate Affidavit** accompanied by a certified death certificate under WAC 458-61A-202, provided all heirs consent and title insurance requirements are met.